

		would be unjust. (Code Civ. Proc., § 2030.300(d).) Therefore, the Court awards Plaintiffs monetary sanctions against Defendants only in the amount of \$500.00 per Defendant. Sanctions to be paid within 30 days. Moving party to give notice.
7.	30-2024-01393434	1. Motion for Sanctions Kaufman vs. Martinez Plaintiff LEAH MICHELE KAUFMAN (“Moving party” or “MP”) seeks an order imposing sanctions pursuant to CCP §128.7 against counsel for Cross-Complainants ASHLEY GISEL MARTINEZ and JUAN MIGUEL MARTINEZ GARCIA and MARIA DEL PILAR TAVERA MEDINA specifically, Michael J. Cody, Esq. and Alex C. Macdonald, Esq. both of Macdonald & Cody, LLP; and Zaid Dean Hakkak, Esq. and Nushan Falatoonzadeh, Esq. of First Law Group-- in an amount to be determined by the Court but not less than \$5,783, which represents the amount in anticipated attorneys fees and costs which have been or will be incurred in addressing the Cross-Complaint and the subsequently filed, Motion for Leave to File a Cross-Complaint. <u>CCP§128.7</u> An attorney or unrepresented party who <i>presents</i> a pleading, motion or similar paper to the court makes an implied “certification” as to its legal and factual merit; and is subject to sanctions for violation of this certification. [CCP § 128.7; see <i>Murphy v. Yale Materials Handling Corp.</i> (1997) 54 CA4th 619, 623—statute inapplicable to pre-1995 cases] The purpose of the statute is “to check abuses in the filing of pleadings, petitions, written notices of motions or similar papers.” [<i>Musaelian v. Adams</i> (2009) 45 C4th 512, 514.] Sanctionable conduct under CCP § 128.7 is limited to “presenting” a “pleading, petition, written notice of motion, or other similar paper” to the court. [CCP § 128.7(b)] By “presenting” the papers to the court, an attorney or unrepresented party certifies that it has read the paper, and “to the best of the person's knowledge, information, and belief, formed after an inquiry reasonable under the circumstances”: • <i>Proper purpose</i>: “It is not being <i>presented primarily for an improper purpose</i>, such as to harass or to cause unnecessary delay or needless increase in the cost of litigation” (CCP § 128.7(b)(1) (emphasis added); • <i>Legal merit</i>: “The claims, defenses, and other legal contentions therein are <i>warranted by existing law</i> or by a nonfrivolous argument for the extension, modification, or reversal of existing law or the establishment of new law” (CCP § 128.7(b)(2) (emphasis added); • <i>Evidentiary support</i>: “The allegations and other factual contentions have <i>evidentiary support</i> or, if specifically so identified, are likely to have evidentiary support after a reasonable opportunity for further investigation or discovery” (CCP § 128.7(b)(3) (emphasis added)); and “The <i>denials</i> of factual contentions are <i>warranted on the evidence</i> or, if specifically so identified, are reasonably based on a lack of information or belief” (CCP § 128.7(b)(4) (emphasis added)). Violation of <i>any</i> of these certifications may give rise to sanctions. [<i>Eichenbaum v. Alon</i> (2003) 106 CA4th 967, 976, 131 CR2d 296, 302] In this instance, Moving Party appears to argue that the 4/6/2026 filing of the Cross-Complaint by Cross-Complainants ASHLEY GISEL MARTINEZ, MARIA DEL PILAR TAVERA

MEDINA, AND JUAN MIGUEL MARTINEZ GARCIA by Attorney Z. Dean Hakkak, Esq of the FIRST LAW GROUP was “duplicative and unnecessarily increases the cost of litigation in the instance case as well as the related case.” MP also complains that the subsequent filing of the Motion for Leave to file Cross-Complaint (on calendar for 10/15/2026) has created a tangled web of procedurally defective pleadings and motions.

Notably, it appears Cross-Complainants have been attempting to file a Cross-Complaint since 9/20/2024 (See ROA 24), but possibly because Plaintiff filed a “Motion to Vacate” that Motion (ROA 36), no Cross-Complaint was ever filed.

Subsequently, in order to preserve their rights to have their claims heard, it appears that ASHLEY GISEL MARTINEZ and MARIA DEL PILAR TAVERA MEDINA filed a Complaint (2025-01506656) on 8/25/2025 and filed a Notice of Related Case on 8/29/2025. There is a Motion to Consolidate these two cases on calendar for 10/15/2026.

Thereafter, on 3/3/2026 Plaintiff filed a First Amended Complaint. It looks like Defendants took this as an opportunity to file a Cross-Complaint, which they did on 4/6/2026. Notably, the Cross-Complaint was not rejected by the Court, and MP has not filed a Motion to Strike that pleading.

More importantly, it is undeniable that the Cross-Complaint is compulsory, arising from the *same transaction, occurrence, or series of transactions or occurrences* as the cause of action ... in [the] complaint.” [CCP § 426.10(c).]

Significant, too, at any time during the course of the lawsuit, the Court retains power to permit defendant to file or amend a cross-complaint to avoid forfeiture of defendant's “related” claim. Indeed, the court “shall grant” leave as long as defendant is acting in good faith. [CCP § 426.50; see *Silver Organizations Ltd. v. Frank* (1990) 217 CA3d 94, 98-99—even on “eve of trial,” leave to file compulsory cross-complaint mandatory absent bad faith]

Yet, again, not satisfied to simply allow Cross-Complainants to file a Cross-Complaint herein, Plaintiff’s counsel emailed counsel for Cross-Complainants on 4/10/2026, “regarding their failure to seek leave prior to filing the Cross-Complaint; and indicated that the Cross-Complaint unnecessarily duplicated the proceeding Ms. Talavera had already filed in the Related Action.” (Declaration of Leslie Keith Kaufman ¶7.)

Perhaps concerned that Attorney Kaufman’ was correct, on 5/15/2026 Cross-Complainants filed a Motion for Leave to File a Cross-Complaint which was set for hearing on 12/10/2026, but advanced pursuant to ex parte application to 10/15/2026.

Curiously, all this law and motion, procedural scrambling, and work (by all parties involved including the Court and its staff) could have been avoided had the parties simply agreed to either 1) the cases being consolidated or 2) allowing Cross-Defendants to file a Cross-Complaint.

While Cross-Complainants’ maneuvering may or may not have been procedurally defective, there is no basis for sanctions herein. Furthermore, Michael J. Cody, Esq. and Alex C. Macdonald, Esq. of Macdonald & Cody, LLP did not file the Cross-Complaint herein so the request for sanctions against these attorneys is further unwarranted.

Motion is **DENIED**.

		Taking this ruling into consideration, counsel is to meet and confer about the necessity of the Motion for Leave to File Cross-Complaint and Motion for Consolidation and Motion for Sanctions pursuant to CCP§128.5, and whether it is reasonable to allow the 4/6/2026 cross-complaint to stand (there being no motion to strike that document), and dismissing the related lawsuit. Responding Party to give notice.
8.	30-2022-01240154 Sanders vs. County of Orange	1. Motion for Summary Judgment and/or Adjudication Defendant COUNTY OF ORANGE, erroneously sued and served herein as ORANGE COUNTY DIVISION OF CHILDREN AND FAMILY SERVICES (the "County") seeks an order granting summary judgment, or in the alternative, summary adjudication as to each cause of action (27 issues) in Defendant's favor, as to Plaintiff CHARLES "DOUG" SANDERS' ("Plaintiff") Second Amended Complaint. Cal. Civ. Code Proc., §§ 473c, 473c(f)(1). By way of background, this case was initiated by Plaintiff filing the Complaint on 1/10/2022. Trial on this case was set for 3/2/2026. Motions in Limine were filed. On 2/26/2026 the Court continued trial to 4/16/2026. On 4/13/2026, the Plaintiff asked for leave to amend the complaint. Defendant also asked to file a motion for summary judgment. Because the case is approaching the 5 year mark, the parties orally stipulated that an MSJ could be filed and served on abbreviated notice. The minute order provided, in part: Moving papers for the Motion for Summary Judgment and/or Adjudication shall be served and filed no later than 06/01/2026. [ROA 448.] Despite the Court's clear order, Defendant did not file or serve the MSJ/SAI until 6/5/2026. Notably, 6/1 was a Monday and 6/5 was a Friday. Defendant provides no excuse for its untimeliness. Moreover, Defendant only filed its MSJ/SAI on that date and failed to file its separate statement or supporting evidence. As it appeared from the responding/opposition briefing that the separate statement and evidence <i>had</i> been served on the responding party, this prompted the Court to send a minute order on 7/14/2026 requesting filing of the missing documents. On 7/14/2026 Defendant filed the missing documents. (ROAS 478, 480.) Procedurally, the Defendant's papers are defective. <u>Notice of Motion:</u> Here, despite the SAC containing only five (5) causes of action, Defendant's Notice of Motion consists of <i>twenty-two (22) pages</i>. Indeed pages 2:11-4:15 of the Notice of Motion contains highly improper argument; and may be deemed as an attempt to violate page limits. CCP§1010 does not allow for argument in the notice of motion. <u>Notice of Motion and Separate Statement :</u>On a motion for summary adjudication, the separate statement must also tie each "undisputed material fact" to the particular claim, defense or issue sought to be adjudicated: "[T]he specific cause of action, affirmative defense, claims for damages, or issues of duty must be stated specifically in the notice of motion and be repeated, verbatim, in the separate statement of undisputed material facts." [CRC 3.1350(b).]